

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KUNAL N. SHAH,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK COUNTY DISTRICT
ATTORNEY CYRUS VANCE, JR., AND POLICE OFFICER
JOHN MARTINEZ (the name "John" being fictitious as the
true first name is presently unknown), individually and in his
official capacity as a New York City Police Officer,

Defendants.
-----X

Index No.: _____
Date Purchased: _____

SUMMONS

Plaintiff designates New
York County as the place of
trial.

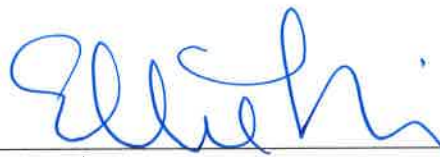
The basis of venue is:
Place of Occurrence

Plaintiff resides at:
53 Golf Road
Bloomfield, NJ 07003
County of Essex

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 24, 2014



Ellie Silverman, Esq.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
KUNAL N. SHAH
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686
Our File No. 13-2983

TO:

THE CITY OF NEW YORK, Municipal Building • New York, New York 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, New York 10007
POLICE OFFICER "JOHN" MARTINEZ, 2271 Frederick Douglass Blvd, New York, NY 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KUNAL N. SHAH,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK COUNTY DISTRICT
ATTORNEY CYRUS VANCE, JR., AND POLICE OFFICER
JOHN MARTINEZ (the name "John" being fictitious as the
true first name is presently unknown), individually and in his
official capacity as a New York City Police Officer,

Defendants.

Index No.: _____
Date Purchased: _____

**VERIFIED
COMPLAINT**

-----X
Plaintiff **KUNAL N. SHAH** by his attorneys **NOVO LAW FIRM, PC** complaining of
Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW
YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER
JOHN MARTINEZ**, respectfully alleges, upon information and belief:

PARTIES

1. Plaintiff **KUNAL N. SHAH** was, and still is, an individual residing at 53 Golf Road, Bloomfield, New Jersey.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant **NEW YORK CITY POLICE DEPARTMENT** was, and still is, at all times relevant herein, a municipal corporation established and maintained by Defendant **THE CITY OF NEW YORK**.
4. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the

public consumers of the services provided by Defendant **NEW YORK CITY POLICE DEPARTMENT**.

5. Defendant **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.**, at all times relevant herein, was the District Attorney of the County of New York, City of New York and State of New York, and was responsible for, and the chief architect of, the policies, practices, customs and usages of the Office of the District Attorney, New York County, of Defendant **THE CITY OF NEW YORK**. Defendant **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.** is and was responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the Assistant District Attorneys and other agents and employees of the Office of the District Attorney, New York County, under his command. He was and they were responsible for the promulgation and implementation of law enforcement policies and practices and approaches of **THE CITY OF NEW YORK** and executed on behalf of the City of New York. In that regard, and among other policies and practices and approaches which they and their subordinates promulgated, implemented and executed, the latter with the express or constructive knowledge and consent of the former, are the policies and practices and approaches, which are described and set forth hereinafter and which propelled the conduct taken against the plaintiff about which the plaintiff complains.
6. Defendant **POLICE OFFICER JOHN MARTINEZ**, was, and still is, at all times relevant herein, duly appointed and acting officer, servant, employee and agent of Defendant **NEW YORK CITY POLICE DEPARTMENT** a municipal agency of Defendant **THE CITY OF NEW YORK**.
7. Defendant **POLICE OFFICER JOHN MARTINEZ**, was, and still is, at all times relevant herein, acting under color of state law in the course and scope of his duties and functions as an officer, agent, servant, and employee of Defendant **THE CITY OF NEW YORK** was acting for, and on behalf of, and with the power and authority vested in him by Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** and was otherwise performing and engaging in conduct incidental to the performance of his lawful functions in the course of his duties.

8. Defendant **POLICE OFFICER JOHN MARTINEZ** was, and still is, at all times relevant herein, a male New York City Police Officer assigned to the 28th precinct located at 2271 Frederick Douglass Blvd, New York, NY 10027.
9. On October 23, 2013, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
10. On July 8, 2014, pursuant to General Municipal Law § 50(h), a hearing was held at the office of a designated agent.

FACTS

11. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
12. On or about July 28, 2013, at approximately 1:30 A.M., Plaintiff **KUNAL N. SHAH** was a lawful pedestrian walking at or near the intersection of 6th Avenue and 1st Street in the County of New York, State of New York, when he became a victim of police misconduct, police brutality and malicious and sadistic force.
13. While Plaintiff **KUNAL N. SHAH** was lawfully at or near the aforementioned location, he was approached by Defendant **POLICE OFFICER JOHN MARTINEZ**, a New York City Police Officer who, without reasonable suspicion, without probable cause and without any threat or reasonable belief of unlawful activity, proceeded to violently and unlawfully arrest and handcuff Plaintiff without any indication as to what he had done wrong and/or what, if any, crime(s) he had committed.
14. Plaintiff **KUNAL N. SHAH** was subjected to unlawful and/or unreasonable pat downs, searches and multiple breathalyzer tests by Defendant **POLICE OFFICER JOHN MARTINEZ**.

15. Plaintiff **KUNAL N. SHAH** was then violently dragged into a patrol vehicle awaiting transport to the 28th precinct.
16. While in the patrol vehicle, Plaintiff **KUNAL N. SHAH** made several complaints of the handcuffs being extremely tight, he pleaded and requested for the handcuffs to be loosened, however, his requests were denied, resulting in severe wrist injuries and pain which lasted for several weeks.
17. Plaintiff **KUNAL N. SHAH** was transported to the 28th precinct where he was fingerprinted, photographed, administered yet another breathalyzer test, placed in a holding cell and otherwise ignored and denied any explanation for such detention.
18. After being held in a cell at the precinct for approximately six (6) hours, Plaintiff was transported to Central Bookings where again, he was fingerprinted, photographed, searched, and again placed into another holding cell.
19. Upon information and belief, Plaintiff was not read his Miranda Rights.
20. Upon information and belief, Plaintiff was denied a phone call.
21. Upon information and belief, at no point did Plaintiff **KUNAL N. SHAH** resist arrest or disobey the arresting officer's commands.
22. After being detained for approximately twenty (20) hours, Plaintiff **KUNAL N. SHAH** was brought before a judge, pled not guilty and was released on his own recognizance.
23. Plaintiff **KUNAL N. SHAH** appeared for approximately nine (9) additional mandatory court appearances before all charges were dismissed by the Honorable Judge M. Crane on April 10, 2014, and all records pertaining to his criminal case were subsequently sealed.

AS AND FOR A FIRST CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY THE CITY OF NEW YORK

24. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
25. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendant **POLICE OFFICER JOHN MARTINEZ**, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and

proximate cause of the unconstitutional conduct alleged herein.

26. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendant **POLICE OFFICER JOHN MARTINEZ**, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendant's supervisors of the need to train, screen, supervise and discipline said Defendant. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
27. Defendant **THE CITY OF NEW YORK** acting through its police department, and through Defendant **POLICE OFFICER JOHN MARTINEZ**, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff **KUNAL N. SHAH** and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
28. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY NEW YORK CITY POLICE DEPARTMENT

29. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
30. At all times material to this complaint, Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through its police department and through Defendant **POLICE OFFICER JOHN MARTINEZ**, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
31. At all times material to this complaint, Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through Defendant **POLICE OFFICER JOHN MARTINEZ**, had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
32. Defendant **NEW YORK CITY POLICE DEPARTMENT** acting through Defendant **POLICE OFFICER JOHN MARTINEZ**, being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **NEW YORK CITY POLICE DEPARTMENT** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff **KUNAL N. SHAH** and which are officially tolerated by Defendant **NEW YORK CITY POLICE DEPARTMENT**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
33. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered

specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.

34. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
35. At all times material to this complaint, Defendant **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.**, had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
36. At all times material to this complaint, Defendant **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.** had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise or discipline employees. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
37. Defendant **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.** being aware that such lack of training, screening, supervision and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.**, being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff and which are officially tolerated by Defendant **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.** Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth,

Eighth and Fourteenth Amendments.

38. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION
DEPRIVATION OF RIGHTS UNDER THE
UNITED STATES CONSTITUTION and 42 U.S.C. § 1983
BY POLICE OFFICER JOHN MARTINEZ

39. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
40. By their conduct and actions in arresting, searching, imprisoning, failing to intercede on behalf of Plaintiff **KUNAL N. SHAH** in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants, Defendant **POLICE OFFICER JOHN MARTINEZ**, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its First, Fourth, Eighth and Fourteenth Amendments.
41. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION
EXCESSIVE FORCE

42. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
43. Plaintiff was continuously subjected to multiple excessive unnecessary and unreasonable acts of physical force and to unnecessary, and to unreasonable and excessive terms and conditions of his detention, at the hands of defendants under the color of state law, in violation of his rights as guaranteed under the First, Fourth, Eighth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 USC § 1983.

44. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
MALICIOUS ABUSE OF PROCESS

45. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
46. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, issued legal process to place Plaintiff **KUNAL N. SHAH**, under arrest and subject him to prosecution.
47. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, arrested and participated in prosecuting Plaintiff **KUNAL N. SHAH**, in order to obtain collateral objectives outside the legitimate ends of the legal process.
48. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, arrested and participated in prosecuting Plaintiff **KUNAL N. SHAH** in order to obtain the collateral objective of intimidating Plaintiff for their personal interest and further to prevent Plaintiff from disclosing the aforementioned evidence of NYPD misconduct and excessive force.
49. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, acted with intent to do harm to Plaintiff **KUNAL N. SHAH** without excuse or justification.
50. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE OF ACTION

**DERELICTION OF DUTY, DEPRAVED INDIFFERENCE
and FAILURE TO INTERCEDE**

51. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
52. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ** were under a duty of safeguarding the public and ensuring the appropriate execution of the New York Police Department's role. Plaintiff **KUNAL N. SHAH** duly relied on Defendants' fulfillment of their policing duties.
53. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, had an affirmative duty to intercede when Plaintiff **KUNAL N. SHAH's** constitutional rights were being violated in Defendants' presence.
54. At the time of the incident, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ** were observing and aware of the wrongful acts against Plaintiff **KUNAL N. SHAH**.
55. At the time of the incident, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ** neglected to intervene on Plaintiff **KUNAL N. SHAH's** behalf in dereliction of their duty to Plaintiff and in depraved indifference to Plaintiff's well-being.
56. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ** violated Plaintiff **KUNAL N. SHAH's** constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
57. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE**

OFFICER JOHN MARTINEZ had an affirmative duty to intercede when Plaintiff **KUNAL N. SHAH**'s constitutional rights were being violated in Defendants' presence by falsifying evidence of probable cause to arrest and prosecute Plaintiff.

58. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
FALSE ARREST and FALSE IMPRISONMENT

59. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
60. By the actions described above, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT**, and **POLICE OFFICER JOHN MARTINEZ** caused Plaintiff **KUNAL N. SHAH** to be falsely arrested and falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.

61. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A NINTH CAUSE OF ACTION
MALICIOUS PROSECUTION

62. Plaintiff repeats and reiterates the allegation set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
63. By the actions described above, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT**, **NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR.**, and **POLICE OFFICER JOHN MARTINEZ**, under color of state law, maliciously prosecuted Plaintiff without probable cause, illegally, without any proper claims and without any right or authority to do so. The acts and conduct of the Defendants were the direct

and proximate cause of injury and damage to the plaintiff and violated his rights as guaranteed by 42 USC §1983 and by the laws of the constitution of the State of New York.

64. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, arrested and issued legal process in order to obtain collateral objectives outside the legitimate ends of the legal process.

65. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged or injured.

AS AND FOR A TENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
THE COMMON LAW OF THE STATE OF NEW YORK
VIA BATTERY

66. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

67. Defendants **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, are vicariously liable to Plaintiff **KUNAL N. SHAH** for the individual Defendant's, **POLICE OFFICER JOHN MARTINEZ**, common tort of battery via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1) (b).

68. Defendant **POLICE OFFICER JOHN MARTINEZ** committed a battery on Plaintiff **KUNAL N. SHAH** by him being grabbed, forced to take multiple breathalyzer tests, handcuffed, patted down, thrown into a van, fingerprinted and searched. The deprivation of food, water and sanitary conditions while in custody, was harmful, un-consented, and unjustified and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.

69. That by reason of the battery, Plaintiff **KUNAL N. SHAH** was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendants' actions.

70. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered a

loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A ELEVENTH CAUSE OF ACTION
VIOLATION OF PLAINTIFF'S RIGHTS
UNDER NEW YORK STATE LAW
VIA ASSAULT

71. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
72. That on the aforementioned date, time and place, Defendant **POLICE OFFICER JOHN MARTINEZ**, committed the tort of assault against Plaintiff **KUNAL N. SHAH** by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendant violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law
73. That Defendants **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** is vicariously liable to Plaintiff **KUNAL N. SHAH** for the individual Defendant's, **POLICE OFFICER JOHN MARTINEZ**, common law tort of assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
74. That by reason of the aforesaid committed by Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT**, and **POLICE OFFICER JOHN MARTINEZ**, Plaintiff **KUNAL N. SHAH** suffered and continues to suffer physical injury and that he was otherwise damaged.
75. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A TWELFTH CAUSE OF ACTION
NEGLIGENCE

76. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

77. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ** negligently caused injuries and otherwise damaged Plaintiff **KUNAL N. SHAH**. The acts and conduct of Defendants were the direct and proximate cause of injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered specific physical, psychological and emotional injuries, emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
VIOLATION OF SUBSTANTIVE DUE PROCESS

79. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.

80. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff **KUNAL N. SHAH** that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.

81. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, individually and collectively are liable for abuses against Plaintiff **KUNAL N. SHAH** that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.

82. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ** individually and collectively are liable for abuses against Plaintiff **KUNAL N. SHAH** that shock the conscience in violation of New York law, rules and regulations.

83. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION AND TRAINING

84. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
85. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KUNAL N. SHAH** a duty to manage, control, and supervise Defendant **POLICE OFFICER JOHN MARTINEZ**.
86. Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** negligently hired, screened, retained, disciplined, supervised and trained Defendant **POLICE OFFICER JOHN MARTINEZ**.
87. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KUNAL N. SHAH** a duty to hire qualified and sufficient personnel in connection with the operation, management control, teaching at and/or supervision of Defendant **POLICE OFFICER JOHN MARTINEZ**.
88. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KUNAL N. SHAH** a duty to train their employees so as to enable them to properly maintain order and control.
89. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KUNAL N. SHAH** a duty to promulgate proper and/or adequate rules and regulations governing the proper care, guidance and/or supervision to be

provided and rendered by those agents, servants, officers and/or employees hired as New York City Police Officers.

90. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KUNAL N. SHAH** a duty to provide a safe and proper environment.
91. At all times herein mentioned, Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** owed Plaintiff **KUNAL N. SHAH** a duty to prevent from being assaulted and battered while in their custody and control.
92. At all times relevant hereto, Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** and/or said Defendants' agents, servants, employees and/or licensees were, jointly, severally and concurrently, negligent, careless and reckless in individually and collectively breaching each and every duty owed to Plaintiff **KUNAL N. SHAH**.
93. The aforesaid occurrence was caused wholly and solely by reason of the negligence of Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** and/or said Defendants' agents, servants, employees and/or licensees, without any fault or negligence on the part of Plaintiff **KUNAL N. SHAH** contributing thereto.
94. Defendants **THE CITY OF NEW YORK, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR. and NEW YORK CITY POLICE DEPARTMENT** and through Defendant **POLICE OFFICER JOHN MARTINEZ** had *defacto* to policies, practices, customs and usage, which were a direct and proximate cause of the unconstitutional conduct alleged herein.
95. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL HARM

96. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
97. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, negligently caused emotional distress and damage to Plaintiff **KUNAL N. SHAH**. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.
98. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL HARM

99. Plaintiff **KUNAL N. SHAH** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
100. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ**, knowingly, unreasonably and maliciously sought to disturb Plaintiff **KUNAL N. SHAH** by their individual and collective outrageous conduct.
101. This conduct includes, without being limited to, assaulting and battering Plaintiff **KUNAL N. SHAH** while he was bound by handcuffs in their custody; unreasonably detaining him; depriving him of food, water and subjecting him to multiple unreasonable searches and other intimidation tactics and violated his statutory and common law rights as guaranteed by the laws in the U.S. Constitution, the Constitution of the State of New York, and under the Charter, laws, rules and regulations of the City of New York.

102. Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., and POLICE OFFICER JOHN MARTINEZ** have caused Plaintiff **KUNAL N. SHAH** humiliation, anxiety, fear, sleeplessness and severe distress.
103. As a result of the foregoing, Plaintiff **KUNAL N. SHAH** was deprived of his liberty, suffered loss of quality and/or enjoyment of life, physical injury, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged.

WHEREFORE, Plaintiff **KUNAL N. SHAH** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
July 24, 2014

Yours, etc.



Ellie A. Silverman, Esq.
NOVO LAW FIRM, PC
Attorneys for Plaintiff
KUNAL N. SHAH
299 Broadway, 17th Floor
New York, New York 10007
212-233-6686
Our File No. 13-2955

ATTORNEY'S VERIFICATION

ELLIE A. SILVERMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **NOVO LAW FIRM, PC**, attorneys of record for Plaintiff **KUNAL N. SHAH**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated: New York, New York
 July 24, 2014



Ellie A. Silverman, Esq.

Index No.: _____/2014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

KUNAL N. SHAH,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK COUNTY DISTRICT ATTORNEY CYRUS VANCE JR., POLICE OFFICER JOHN MARTINEZ, individually and in his official capacity as a New York City Police Officer (the name "John" being fictitious, as the true first name is presently unknown),

Defendants.

SUMMONS AND VERIFIED COMPLAINT

NOVO LAW FIRM, P.C.

Attorneys for Plaintiff

KUNAL N. SHAH

299 Broadway, 17th Floor
New York, New York 10007
(212) 233-6686
Fax (212) 233-6687

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: July 24, 2014



Ellie A. Silverman, Esq.

TO:

THE CITY OF NEW YORK, Municipal Building • New York, New York 10007
NEW YORK CITY POLICE DEPARTMENT, 100 Church Street, New York, New York 10007
POLICE OFFICER "JOHN" MARTINEZ, 2271 Frederick Douglass Blvd, New York, NY 10027